Too Old to Hire, Too Young to Retire

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Abstract

China's domestic service sector runs on the labour of women who are themselves approaching or past the statutory retirement age. In the most reliable survey evidence available, eldercare workers average 54.4 years old. Yet three institutional thresholds in Guangdong and Shenzhen sit directly on that age band. Hiring advertisements routinely cap applicants at 40 to 50. Provincial vocational training subsidies terminate at 55 for women and 60 for men. And work-injury insurance, though formally extended to domestic workers and to over-age workers alike, can only be purchased through an "employing unit" — a channel unavailable to the large share of domestic workers who are placed by intermediary agencies or hired directly by households.

This paper argues that the barrier facing older domestic workers in Shenzhen is not the absence of policy but its architecture. Drawing on clause-level analysis of eight legal and policy instruments and on secondary analysis of published ethnographic, survey and journalistic material, it distinguishes four kinds of policy gap — absence, coverage, implementation and awareness — and shows that the binding constraints in this case are overwhelmingly of the second type. Guangdong Provincial Regulation〔2024〕No. 6 names domestic workers as eligible for single-item work-injury insurance and then routes enrolment exclusively through employers; Guangdong Provincial Regulation〔2023〕No. 13 offers training subsidies and then withdraws them at exactly the median age of the workforce those

subsidies are meant to serve. Where an injured directly-hired worker falls out of this architecture, she lands on Article 1192 of the Civil Code, a fault-based rule under which courts have repeatedly dismissed claims.

The paper closes with five recommendations calibrated to Shenzhen's regulatory competence, the most consequential of which is opening an individual enrolment channel for single-item work-injury insurance.

Keywords: domestic work; older workers; age discrimination; work-injury insurance; informal employment; Shenzhen; policy gap analysis

1 Introduction

Shenzhen is the youngest of China's first-tier cities. At the end of 2023 residents aged 60 and over numbered 1.38 million, or 7.77 per cent of the resident population — well below the national figure, and below the conventional threshold at which a society is described as ageing. Demographers expect the city to cross that threshold only around 2029.

This youth is partly an artefact. Shenzhen's population is young because the city imports workers in their twenties and, for the most part, does not keep them into old age. Of 18.25 million residents at the end of 2025, only 6.31 million held local *hukou* at the end of 2024; the great majority are migrants whose entitlement to urban services, pensions and medical settlement remains anchored elsewhere. Many leave when they can no longer work. The city's demographic youthfulness is, in this sense, the visible face of an invisible export of ageing.

There is one conspicuous group that does not leave. The women who clean Shenzhen's offices, mind its children and care for its elderly parents are, as a population, markedly older than the city they serve. Industry association figures reported in 2017 described the domestic workforce as concentrated in the 40-to-49 bracket, with the cohort born in the 1970s forming the "main force" (Liu and Liang 2017). Nearly a decade on, that same cohort is between 46 and 56. In the most careful survey evidence available, eldercare workers in four Chinese cities averaged 54.44 years of age (Yang 2022). Zhang Xiaoman's ethnographic account of cleaning work in Shenzhen describes a workforce "sustained by older people between 50 and 65, from all over the country" (Zhang 2023).

The puzzle this paper addresses follows directly. An industry that is chronically short of labour, and whose workforce has aged into its fifties, nonetheless erects age barriers precisely at the point where that workforce now sits. Recruitment advertisements for live-in nannies and childcare workers in the Pearl River Delta commonly specify ceilings of 40, 45 or 50. Guangdong's vocational training subsidy regime, the principal instrument through which the state invests in these workers' skills, terminates at 55 for women. And the work-injury insurance scheme that was explicitly extended to cover domestic service personnel requires an employing unit to complete enrolment — which the intermediary agencies that dominate Shenzhen's

market are not, and which a household that hires directly is not either.

The question is therefore not why the state has failed to act. It has acted, repeatedly and recently: a provincial domestic service regulation in 2023, a revised work-injury insurance measure in 2024, a national retirement age reform effective 2025, a Supreme People's Court interpretation reshaping the legal status of over-age workers effective September 2025. The question is why this dense and active policy environment leaves older domestic workers so thinly protected. The answer developed here is that the failures are located in eligibility architecture rather than in legislative silence — in who a rule lets in, and through what door.

Section 2 sets out Shenzhen as a case. Section 3 reviews the relevant literatures. Section 4 develops a four-part typology of policy gaps and a funnel model of re-employment. Section 5 states the paper's evidentiary basis and its limits — importantly, that all interview material quoted here was collected and published by others, and is cited as such. Sections 6 and 7 present findings and discussion; Section 8 offers recommendations.

2 Shenzhen as a Case

2.1 A migrant city that does not grow old in place

Shenzhen's institutional peculiarity is the gap between residence and membership. At the end of 2025 the city recorded 18.2485 million residents, having added an average of 196,000 people a year over the preceding three years — the largest increase among large and medium-sized Chinese cities reporting comparable data. *Hukou* holders numbered 6.3101 million at the end of 2024. The arithmetic leaves roughly two-thirds of the resident population outside the local household registration system.

For a domestic worker in her fifties, this gap has concrete consequences. Her pension record, if she has one, is typically a rural resident scheme account in her home province with a small accumulated balance. Her medical insurance settles across provinces imperfectly. Her claim on Shenzhen's social provision is weak, and weakens further at the moment she stops working. The city is a place she works, not a place she can grow old in.

This matters for the analysis that follows because it removes an option that policy debate often assumes is available. When an older worker in a formal urban job loses employment, the

pension system provides a floor and re-employment is genuinely optional. For a fifty-five-year-old migrant domestic worker, there is no floor to fall to. Continued work is not a preference; it is the only arrangement that functions. This is what makes exclusion at the hiring gate so consequential, and it is why "she can always retire" is not a serious answer.

2.2 The structure of the domestic service market

Shenzhen's domestic service market is conventionally divided into three arrangements, and the distinction turns out to carry nearly all of the paper's analytical weight.

Under the **employee model** (员工制), a firm signs a labour contract with the worker, pays her social insurance, and dispatches her to client households. She is an employee; the firm is her employing unit. Article 15 of the *Guangdong Domestic Service Regulations* requires firms operating this model to contribute social insurance for contracted workers.

Under the **intermediary model** (中介制), the firm introduces worker and household to one another for a fee and then withdraws. Reporting from 2017 put those fees at ¥500 as a one-off or ¥800 annually with unlimited replacement of the placed worker (Liu and Liang 2017). The firm is a broker. It is not the worker's employing unit, and it does not treat itself as one.

Under **direct hire** (直雇), household and worker find each other through acquaintance networks, neighbourhood noticeboards, or online listings, with no firm involved at all.

The employee model is the arrangement that Guangdong's regulatory framework is written for, and it is the minority arrangement. The intermediary model has historically dominated, and direct hire is widespread and largely invisible to the statistical system. The relevance is immediate: every protective mechanism examined in Section 6 attaches to the employment relationship or to an employing unit, and two of the three arrangements produce neither.

2.3 Low barriers at the gate, no protection behind it

The domestic service sector is frequently described as low-threshold, and in one sense it is. Reporting from 2017 quoted one firm's entire screening procedure: "There's no need to meet — send a photo by text to verify identity, and we'll arrange work" (Liu and Liang 2017). The same investigation found workers placed with no pre-placement training whatever.

But low entry thresholds are not the same as easy entry, and the distinction is central to what

follows. The formal requirements a worker must satisfy — identity documents, a health certificate, a medical examination, a no-criminal-record check, sometimes a vocational certificate and an agency fee — are individually modest and cumulatively a real cost in money, time and physical scrutiny, borne up front by someone who has no income at that moment. For a worker with a chronic condition, the medical examination is not a formality but a hazard. Zhang (2023) records that her mother concealed a diagnosed knee condition in order to be hired at all.

The sector's permeability and its precariousness are, in other words, two descriptions of one fact: that very little of the relationship is written down. What lets a fifty-four-year-old woman with six years of schooling find work within a week is the same absence of formal structure that leaves her, when she is injured a year later, with no contract, no insurance and no employer of record.

3 Literature Review

3.1 Segmented labour markets and the informality of care

The starting point for any account of domestic work in China is that it sits almost entirely outside the formal employment relationship. A survey of domestic workers across three Chinese cities found them to be predominantly rural women with junior-high schooling or less, working without labour contracts and without access to labour rights protections or social security, and identified eldercare workers as having the lowest hourly pay of any category of domestic work (*China Population and Development Studies* 2022). This is not incidental informality of the kind that a maturing market corrects. It is structural, and it has proved durable across two decades of sectoral expansion.

Research on the organising of domestic workers in urban China has shown how the specific entitlements these workers most need — pensions, medical treatment, workers' compensation — have been persistently "set aside" in the construction of the sector's labour regime (*Asian Journal of German and European Studies* 2018). The sector was built, in effect, on the premise that domestic work is not employment, and the regulatory apparatus that has since grown around it has not fully dislodged that premise.

3.2 The devaluation of care work

A second literature concerns why care work in particular is poorly paid. The most directly relevant empirical study for this paper is Yang's (2022) analysis of a 2019 survey of 884 women employed in domestic service across Nanjing, Wuxi, Guangzhou and Foshan. Eldercare workers in that sample earned ¥3,836 per month against ¥5,039 for childcare workers, and after controlling for individual characteristics their monthly wages remained roughly 12 per cent lower. An Oaxaca–Blinder decomposition attributed approximately 76 per cent of the monthly wage gap to occupational discrimination and only 24 per cent to differences in endowments.

Three further findings from the same study anchor the argument of this paper. Eldercare workers averaged 54.44 years of age, five years older than childcare workers. Only 30 per cent had received training, against 63.26 per cent of childcare workers. And training produced no significant wage return for eldercare workers, although it did for childcare and housekeeping workers. The last of these is the most consequential and the least noticed: the skills deployed in eldercare are systematically undervalued in a way that investment in training does not correct. Any policy that treats training subsidies as the primary instrument for improving older domestic workers' position is, on this evidence, addressing the wrong margin.

Work on gender, class and age among direct care workers in China has examined how the "old" who attend to the "old" experience their own ageing as something constructed through gender and class rather than simply undergone — a framing that helps explain why age operates in this sector as a marker of suitability for some tasks and disqualification from others simultaneously.

3.3 Ageism and the legal status of the over-age worker

Chinese labour law does not define an over-age worker as a worker. Article 21 of the *Implementing Regulations of the Labour Contract Law* provides that a labour contract terminates when the employee reaches statutory retirement age. The prevailing judicial position that followed treated post-retirement-age work as a labour-service relationship (劳务关系) governed by civil law rather than an employment relationship (劳动关系) governed by labour law — with the consequences that flow from that: no work-injury insurance, no minimum wage protection, no

access to labour arbitration.

This position has recently shifted, though incompletely. The Supreme People's Court's *Interpretation (II)* on labour dispute cases, effective 1 September 2025, repealed Article 32(1) of *Interpretation (I)* and established that for workers past retirement age who are *not yet drawing* basic pension benefits, claims concerning remuneration, labour protection, working hours, rest and leave, occupational hazard protection and welfare treatment are to be supported — while claims for open-ended contracts, double wages, severance, damages and social insurance benefits are not. The result is a genuine improvement and a partial one: a category of half-protection, in which the worker may sue over her wages but not over her pension.

Running alongside this is the retirement age reform itself. The National People's Congress Standing Committee's decision of 13 September 2024, effective 1 January 2025, raises the statutory retirement age over fifteen years — for men from 60 to 63, for female cadres from 55 to 58, and for female blue-collar workers from 50 to 55. From 2030 the minimum contribution period for monthly pension benefits rises from 15 to 20 years. For a worker with a continuous formal contribution record, this is a manageable adjustment. For a rural-*hukou* domestic worker with fragmentary contributions, a longer minimum contribution period is simply a receding target.

3.4 The comparative case of the construction clearance

The clearest recent illustration of how Chinese labour institutions handle older workers is not in domestic service but in construction. From around 2021, Shanghai and a number of other cities barred workers over 60 from entering construction sites. The stated rationale was safety. The effect was to remove a large cohort of migrant men from their principal source of income without providing an alternative. Commentary at the time noted the double bind: older workers were excluded from the formal employment system on grounds of age while remaining attractive to employers precisely as cheap labour, with the savings coming out of their own protection. Provincial authorities subsequently pushed back against blanket implementation — Anhui's housing and construction department called for flexible, post-specific age management rather than a "one-size-fits-all" clearance.

The construction clearance and the domestic-service age ceiling are two expressions of a

single institutional logic. In one, the state sets an age limit and the market complies. In the other, the market sets an age limit and the state is silent. In both, the older worker absorbs the cost.

4 Analytical Framework

4.1 Four kinds of policy gap

Discussions of "policy gaps" frequently collapse distinct problems into a single complaint that the state has not done enough. Distinguishing among them matters, because each type implies a different remedy and they are not equally common.

Absence.

No instrument addresses the problem at all. The remedy is legislation.

Coverage.

An instrument exists, but its eligibility conditions exclude the population it is nominally meant to reach. The remedy is amendment of eligibility criteria — often a single clause.

Implementation.

An instrument exists and formally covers the population, but the enforcement or delivery mechanism is weak, typically because the operative verb is "encourage" rather than "shall." The remedy is enforcement design.

Awareness.

An instrument exists, covers the population, and functions — but intended beneficiaries do not know it exists. The remedy is notification infrastructure.

The central empirical claim of this paper is that the constraints binding on older domestic workers in Shenzhen are concentrated in the second category. This is not a trivial reclassification. A coverage gap is politically and technically far cheaper to close than an absence gap: it requires editing a clause, not passing a law. That the gaps here are of this type is what makes the recommendations in Section 8 realistic.

4.2 The re-employment funnel

Barriers to re-employment are usually discussed as a single aggregate — "it is hard for older women to find work." Disaggregating the process into stages localises each barrier and identifies which institution could remove it.

$$\textsc{Interruption} \rightarrow \textsc{Search} \rightarrow \textsc{Screening} \rightarrow \textsc{Trial} \rightarrow \textsc{Placement} \rightarrow \textsc{Retention}$$

- *Interruption*: illness, injury, return to the home village to care for a grandchild or parent, the dissolution of an employing household.
- *Search*: which channels remain available after an interruption; whether prior employer references survive the gap.
- *Screening*: the stage where age operates most explicitly — advertised age ceilings, the medical examination, certificate requirements, agency fees.
- *Trial*: the unpaid or underpaid probation period, during which physical capacity is assessed informally.
- *Placement*: the terms actually agreed, and whether anything is written down.
- *Retention*: whether the placement survives the worker's own ageing and the household's changing needs.

Section 6 maps the evidence onto these stages. The concentration is at screening — which is also, conveniently, the stage at which regulation of hiring practice could operate. Figure 1 presents the funnel with the stage-specific barriers documented below.

5 Methods and Sources

5.1 What this study is

This paper is a **secondary analysis of published qualitative material combined with a clause-level analysis of policy and legal texts**. It is not a report of original fieldwork.

This statement is not a formality, and it bears on how the material in Section 6 should be read. Every quotation from a domestic worker that appears in this paper was collected, recorded

and published by another researcher or journalist. Where such material appears, the original observer is named in the text — "as Zhang records," "one worker told Liu and Liang" — so that the chain of observation remains visible. No claim is made anywhere in this paper that the author spoke with any domestic worker.

Secondary analysis of published qualitative data is an established method with real advantages here: it permits engagement with a much larger and more geographically varied body of testimony than a single researcher could assemble, and it draws on material gathered by observers with far longer exposure to the field than a short study could achieve. Zhang Xiaoman's account, in particular, rests on three years of repeated presence in her mother's workplaces and contact with more than a hundred cleaners. It also has an obvious limitation, addressed in Section 9: the questions asked were not this study's questions.

5.2 The policy corpus

Eight instruments were analysed at clause level, selected because each is currently in force in Shenzhen and each directly conditions the employment, training or protection of older domestic workers:

1. Guangdong Provincial Regulation〔2024〕No. 6, *Measures on Participation in Work-Injury Insurance by Flexibly Employed Workers and Other Specified Personnel Engaged by Units*, effective 1 June 2024
2. Guangdong Provincial Regulation〔2023〕No. 13, *Guangdong Vocational Skills Training Subsidy Administration Measures*, effective 15 August 2023
3. *Guangdong Domestic Service Regulations*, effective 1 July 2023
4. Civil Code, Article 1192
5. *Implementing Regulations of the Labour Contract Law*, Article 21
6. Supreme People's Court, *Interpretation (II) on Labour Dispute Cases*, effective 1 September 2025
7. NPC Standing Committee, *Decision on the Gradual Raising of the Statutory Retirement Age*, effective 1 January 2025

8. Shenzhen *Nanyue Domestic Service* eldercare training programme implementation scheme

For each, the analysis recorded: the population defined as eligible; the enrolment or application mechanism; any age condition; the operative modality (mandatory or hortatory); and the consequence of falling outside the defined population. Full document numbers, effective dates and article numbers are given in the source register accompanying this paper.

5.3 The qualitative corpus

Four bodies of published material were used:

- **Ethnography.** Zhang Xiaoman, *My Mother Works as a Cleaner* (2023), a non-fiction account of the author's mother's three years of cleaning work in Shenzhen, drawing on the author's repeated presence in those workplaces and contact with over a hundred cleaners.
- **Survey research.** Yang (2022) on 884 domestic workers in four cities; the three-city survey published in *China Population and Development Studies* (2022).
- **Investigative journalism.** Liu and Liang's 2017 investigation of the domestic service market, which includes on-record statements from the secretaries-general of the Shenzhen and Guangzhou industry associations. Its 2017 date is flagged wherever it is used; it is treated as evidence about that year, and the cohort ageing implied by comparing it with later data is made explicit rather than assumed.
- **Court decisions** involving injured domestic workers, used to establish what happens in practice when the protective architecture fails.

5.4 Selection and limitations of the corpus

Sources were selected for direct relevance to older domestic workers in Shenzhen or the Pearl River Delta, and for verifiability. Where the best available evidence concerns other Chinese cities — as with Yang's four-city survey, which does not include Shenzhen — this is stated rather than glossed. Two known weaknesses are recorded here: the industry-association figures for Shenzhen's market size are traceable only to secondary reporting, and the court decisions cited are illustrative of a legal position rather than a systematic sample of outcomes.

6 Findings

6.1 An ageing workforce, a younger standard of entry

The first finding is a divergence between two trends that ought to move together.

In 2017 the secretary-general of the Shenzhen Domestic Service Industry Association described the sector's workforce as concentrated in the 40-to-49 age bracket, with those born in the 1960s "gradually exiting the market" and those born in the 1970s constituting the "main force" (Liu and Liang 2017). Read at the time, this is a portrait of a middle-aged workforce. Read from 2026, it is something else: the cohort then identified as the industry's core is now between 46 and 56 years old. If the sector has continued to rely on the same generation of women rather than recruiting a younger one — and the available evidence suggests it has — then its workforce has aged roughly a year for every year that has passed.

Independent evidence supports this. Yang's (2022) four-city survey found eldercare workers averaging 54.44 years of age, with 85.42 per cent working in live-in arrangements and mean schooling of 6.92 years. Zhang (2023) describes the cleaning workforce in Shenzhen's commercial buildings as sustained by people "between 50 and 65, from all over the country."

Against this, the standard of entry has not moved. Recruitment listings for domestic positions in the Pearl River Delta continue to specify age ceilings well below the sector's own median: childcare positions capped at 45, live-in nanny positions at 40, eldercare positions at 50. Published commentary on the sector notes listings seeking "women, 18 to 42 years old."

The result is a market in which a substantial share of the actual workforce would be ineligible for a substantial share of the advertised positions. This is not a stable equilibrium and it does not resolve itself into exclusion, because the work still has to be done. What it produces instead is the arrangement Zhang (2023) describes plainly: age limits exist, and hiring above them is common practice. The ceiling is not a wall but a filter that pushes older workers toward the positions with the least bargaining power, the least formality and the lowest pay — and, critically, gives every employer a standing justification for offering worse terms, since the worker is being hired as an exception to a stated rule.

This is the mechanism by which a nominal age ceiling depresses conditions without actually

excluding anyone. Its cost is invisible in employment statistics because the worker is employed. It shows up instead in her wages, her contract status and her insurance.

6.2 How working lives are interrupted

The second finding concerns what pushes older domestic workers out of employment in the first place, and it complicates the assumption that re-employment difficulty is primarily about employer prejudice.

The interruptions described in the published record are overwhelmingly of three kinds. The first is the body. Zhang (2023) records that her mother came to Shenzhen carrying a diagnosed condition in her left knee — synovitis — that caused pain in wet weather throughout her three years of cleaning work. The second is care obligation flowing in the other direction: returning to a home village to look after a grandchild or an ageing parent, an interruption that is gendered in its incidence and indefinite in its duration. The third is the dissolution of the employing household itself — a child grows up, an elderly client dies, a family relocates — which ends the placement through no act of the worker's.

What these have in common is that none is a performance failure, and none is visible as such to the next employer. What the next employer sees is a gap in the record and an older applicant, and the two are read together as evidence of decline.

The economic pressure to overcome that reading is severe. Zhang (2023) reports that roughly a third of the cleaners she came to know were subsidising adult children, and that her mother's monthly wage never exceeded ¥3,000, with no social insurance contributions of any kind and overtime paid at ¥11.25 an hour. One worker's summary of why she had come — "there's no money in farming" — locates the alternative accurately. Zhang also describes women subsisting on supermarket bread and fruit past its sell-by date, and working through chronic illness.

Under that pressure, the rational response to a screening process that penalises ill health is concealment. Zhang (2023) records that her mother hid her knee condition in order to be hired. This is not a marginal detail. It is the predictable consequence of a screening regime that treats the medical examination as a filter rather than as an occupational health measure, and it means that the workers most exposed to injury on the job are precisely the ones with the strongest

incentive to enter it undisclosed — which then interacts, as Section 6.4 shows, with an injury protection system they cannot access.

6.3 Where the funnel narrows

Mapping the evidence onto the stages set out in Section 4.2 shows the losses concentrated at a single point.

At **search**, the older worker's disadvantage is modest. Placement networks in this sector are informal, dense and forgiving of gaps; word of mouth among fellow villagers and former employers continues to function. Zhang (2023) documents the density of these networks directly — over a hundred cleaners known to one worker, thirty-odd retained as WeChat contacts.

At **screening**, the losses are severe and they are cumulative. The formal requirements are individually small and jointly substantial: identity documents, a health certificate, a medical examination, a no-criminal-record check, in some cases a vocational certificate, and an agency fee reported at ¥500 as a one-off or ¥800 per year (Liu and Liang 2017). Each carries a monetary cost, a time cost and — in the case of the medical examination — a risk of disqualification. All of it is borne up front by a worker who by definition has no current income. The advertised age ceiling operates here too, not usually as an absolute bar but as the justification for a worse offer.

At **trial**, physical capacity is assessed informally, during a probation period that is frequently unpaid or underpaid, and for which reported industry practice includes fee refunds to the *household* if it is dissatisfied within the first week — an arrangement that transfers the risk of a failed match onto the worker.

At **placement**, very little is written down. The three-city survey found domestic workers predominantly without labour contracts and without social insurance. Zhang (2023) records that her mother did not sign a contract according to the rules.

At **retention**, the worker's own ageing eventually terminates the placement, returning her to the start of the funnel — but older, with a further gap in her record, and one cycle closer to the point where no employer will take the exception.

The pattern is clear. Age operates on this workforce not by preventing employment but by making each re-entry more costly and each placement worse than the last. The relevant policy

question is therefore not how to help older workers find jobs — they find them — but how to stop the terms deteriorating at every cycle.

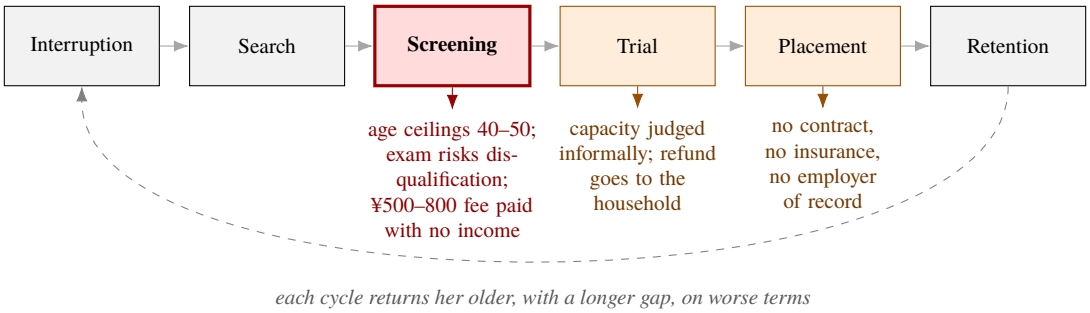


Figure 1: The re-employment funnel for older domestic workers in Shenzhen, with the stage-specific barriers documented in Section 6.3. Losses concentrate at screening — the one stage a recruitment-advertising rule could reach.

6.4 The structural break in injury protection

The fourth finding is the paper's central one, and it is a matter of institutional architecture rather than interpretation.

Guangdong Provincial Regulation〔2024〕No. 6, effective 1 June 2024, governs participation in work-injury insurance by specified categories of workers who have no labour relationship with the unit engaging them. Its Article 3 lists ten such categories. Two are directly relevant here. The first covers "persons above the statutory retirement age, including those who do and do not receive urban employee basic pension benefits." The fifth covers "domestic service personnel engaged by domestic service institutions."

On its face this is a genuine and deliberate extension of protection to exactly the population this paper concerns. Older workers are named. Domestic workers are named. The instrument was revised as recently as 2024, and it superseded a 2021 trial version, so it reflects current provincial intent.

Article 5 then specifies the mechanism: "the engaging unit may complete single-item work-injury insurance enrolment procedures for its personnel at the place of production and operation." Enrolment runs through the engaging unit. There is no individual enrolment channel. A worker cannot buy this insurance for herself.

Set this against the market structure described in Section 2.2. A worker employed under the employee model has an engaging unit and can be enrolled. A worker placed by an intermediary

agency has no engaging unit — the agency's entire commercial position is that it brokered an introduction rather than employed anyone. A worker hired directly by a household has no engaging unit either, and a private household is not among the entities contemplated by the enrolment mechanism.

The consequence is precise: for the majority of Shenzhen's domestic workforce, work-injury insurance is formally available and practically unobtainable. She is named as eligible in Article 3 and locked out by Article 5.

What happens when such a worker is injured can be stated with equal precision. Absent an employment relationship, she falls to Article 1192 of the Civil Code, which governs labour-service relationships between individuals and apportions liability "according to the respective fault of the two parties." This is a fault-based rule, and it replaces the no-fault compensation logic that work-injury insurance exists to provide. Courts have applied it as written. A live-in nanny injured in her employer's home was found by the Songjiang District People's Court in Shanghai to be in an individual labour-service relationship, with no liability arising absent employer fault. A nanny who fractured a bone while lifting an elderly client had her claim dismissed by the Xishan District People's Court in Kunming. In a reported case, a claim of ¥1.58 million following a live-in nanny's death from sudden illness was rejected.

The chain is therefore closed at every link. She cannot obtain work-injury insurance because she has no engaging unit. She cannot claim as an employee because she has no employment relationship. She cannot recover in tort unless she can prove the household was at fault, which in the ordinary case of a fall, a strain or a lifting injury she cannot. And, as Section 6.2 established, she may well have concealed a pre-existing condition to be hired at all — which weakens her position further at precisely the moment she needs it.

The Supreme People's Court's *Interpretation (II)*, effective 1 September 2025, improves this picture without repairing it. Over-age workers not yet drawing pension benefits may now pursue claims for remuneration, labour protection, working hours, rest and leave, occupational hazard protection and welfare treatment. They may not pursue claims for social insurance benefits. The reform reaches her wages. It does not reach her injury.

6.5 The training subsidy and the age of the workforce

The fifth finding concerns the state's principal positive instrument for this group, and it involves two independent failures that compound.

Guangdong Provincial Regulation 〔2023〕No. 13, effective 15 August 2023, governs vocational skills training subsidies. Its eligibility clause provides that "workers shall be at least 16 years of age, with men not exceeding 60 years and women not exceeding 55 years." The same bracket recurs across the measure's several subsidy programmes. Shenzhen's *Nanyue Domestic Service* eldercare training programme likewise restricts participation to those within the statutory working age range.

The first failure is arithmetic. The best available survey evidence puts the mean age of eldercare workers at 54.44 years (Yang 2022). The subsidy withdraws at 55. The cutoff therefore falls essentially at the median age of the occupation the subsidy is meant to professionalise: roughly half of the target workforce is already ineligible or will be within a year or two. A policy designed to raise the skill level of eldercare work excludes the modal eldercare worker.

The second failure is more damaging, because it means that closing the first would not be sufficient. Yang (2022) found that training produced **no significant wage return for eldercare workers**, while producing significant returns for childcare and housekeeping workers. Only 30 per cent of eldercare workers in the sample had received training at all, against 63.26 per cent of childcare workers. Read alongside the decomposition result — approximately 76 per cent of the eldercare–childcare monthly wage gap attributable to occupational discrimination rather than to endowments — the implication is that the problem in eldercare is not a skills deficit. It is that the skills are not valued. Training subsidies address endowments. The evidence says roughly three-quarters of the gap lies elsewhere.

The policy is thus inaccessible to half its intended beneficiaries and, for the occupation in question, ineffective for the other half.

6.6 Mapping the gaps

Applying the typology from Section 4.1 to the eight instruments produces Table 1.

Six of the seven assessable gaps are of the coverage or absence type; only one turns on

Table 1: Policy gaps affecting older domestic workers in Shenzhen, by failure mechanism

Gap type	Instrument	Mechanism of failure
Coverage	Guangdong Reg. 〔2024〕No. 6, Art. 5	Domestic and over-age workers named as eligible (Art. 3), but enrolment runs only through an engaging unit, which intermediary-placed and directly-hired workers do not have
Coverage	Guangdong Reg. 〔2023〕No. 13	Training subsidy withdraws at 55 for women — approximately the median age of the eldercare workforce
Coverage	SPC Interpretation (II), 2025	Extends wage and working-condition claims to over-age workers; expressly excludes social insurance claims
Coverage	NPCSC retirement decision, 2025	Minimum contribution period rising 15→20 years from 2030 recedes further from workers with fragmentary records
Absence	Guangdong Domestic Service Regulations	No provision of any kind on age thresholds in recruitment
Absence	Civil Code Art. 1192	Fault-based liability substitutes for no-fault injury compensation, with no sector-specific alternative
Implementation	Guangdong Domestic Service Regs., Art. 15	Employee-model firms *shall* insure contracted workers; flexibly employed workers are only *encouraged* to enrol voluntarily
Awareness	All of the above	Not assessed — see Section 9

weak implementation. This distribution is the paper's principal analytical result. The dominant failure mode is not that Guangdong and Shenzhen have neglected these workers, nor that local officials fail to enforce what exists. It is that the eligibility conditions attached to otherwise well-designed instruments exclude the population the instruments name.

7 Discussion

7.1 How a named beneficiary becomes a residual category

The 2024 revision of Guangdong's work-injury measure did something worth noticing in its title. The 2021 trial version was called *Measures on Participation in Work-Injury Insurance by Workers Above the Statutory Retirement Age and Other Specified Personnel*. The 2024 version is called *Measures on Participation in Work-Injury Insurance by Flexibly Employed Workers and Other Specified Personnel*. The official interpretation explains the change as aligning with national guidance on protections for gig workers, and the revision genuinely expanded coverage — from eight categories to ten, adding grassroots courier workers and transport drivers.

But in the process, over-age workers moved from the title to the list. They had been the named subject of the instrument; they became one of ten enumerated categories inside an instrument about flexible employment. Nothing was taken away — Article 3 still covers them. What changed was salience. When a policy problem is renamed after a more politically prominent adjacent problem, the original population does not lose its entitlement but does lose the attention that produces implementation effort, monitoring and follow-up. This is a plausible part of the explanation for why Article 5's enrolment bottleneck has gone unaddressed through a revision that was otherwise attentive to detail: the drafters were solving for platform labour, where an engaging unit generally exists, and older domestic workers were carried along in a list.

The same revision also tightened enforcement against employers improperly converting regular employees into single-item participants, warning that authorities may decline to process work-injury determinations in suspected cases. That is a defensible anti-abuse measure. Its incidental effect is to make intermediary agencies more cautious about enrolling anyone whose status is ambiguous — which describes most domestic workers.

7.2 Why the employee model has not scaled

Guangdong's regulatory strategy since 2023 has effectively been to promote the employee model and let protection follow from it. Article 15 of the *Domestic Service Regulations* requires employee-model firms to pay social insurance for contracted workers; Article 20 provides policy support for developing such firms. If the employee model became dominant, most of the problems identified in this paper would dissolve: workers would have engaging units, and engaging units can enrol them.

The model has not become dominant, and the reason is visible in the incentives. Under the intermediary model a firm earns a placement fee of several hundred yuan and carries no ongoing liability. Under the employee model it carries wage obligations between placements, social insurance contributions, and legal responsibility for the worker's conduct in a client's home. The cost difference is not marginal. Meanwhile the demand side is largely indifferent: households comparing two workers rarely price the difference in the firm's employment model, and reporting on the sector suggests many prefer the flexibility and lower headline cost of intermediary placement.

The regulation therefore encourages a model that the market's cost structure penalises, and it does so with support measures rather than mandates. Article 15's asymmetry captures the problem exactly: employee-model firms *shall* contribute social insurance, while flexibly employed workers are merely *encouraged* to participate voluntarily. The binding obligation attaches to the arrangement that is already the most protective, and the arrangement that covers most workers attracts only exhortation. This is the one clear implementation gap in the corpus, and it is structural rather than administrative.

7.3 The retirement reform runs the wrong way for this group

The gradual retirement age reform effective January 2025 is, in aggregate, a response to population ageing that extends working lives. For female blue-collar workers the statutory age rises from 50 to 55 over fifteen years. For a formally employed woman with a continuous contribution record, this is an extension of pension-accruing employment.

For a rural-*hukou* domestic worker it is close to the opposite. Her statutory retirement age

governs her legal status as a worker — Article 21 of the *Implementing Regulations* terminates a labour contract at that threshold — without governing her actual working life, which continues regardless because she has no pension to retire onto. Raising the threshold extends the period during which she is formally a worker, which is a modest gain given that she is unlikely to have a labour contract in the first place. Meanwhile the reform's second component is unambiguously adverse: from 2030 the minimum contribution period for monthly pension benefits rises from 15 to 20 years. A worker with fragmentary contributions accumulated across provinces and employment gaps sees the qualifying target move further away at the moment she has least capacity to reach it.

The reform is calibrated for workers inside the formal system. Applied to workers outside it, its protective element is largely nominal and its demanding element is fully operative.

7.4 What the construction comparison shows

The 2021–22 removal of over-60 workers from construction sites in Shanghai and elsewhere is the closest available comparison, and the contrast is instructive. There, the state imposed an age limit and the market complied; here, the market imposes an age limit and the state is silent. The *Guangdong Domestic Service Regulations*, a detailed instrument of 2023 that addresses wage withholding, document confiscation, training obligations, residency permits and complaint procedures, contains no provision of any kind on age thresholds in recruitment.

The outcomes converge nonetheless. In construction, older men lost formal work and reappeared in informal arrangements at lower pay. In domestic service, older women are not excluded but are hired as exceptions to a stated ceiling, on terms that reflect their exceptional status. In both cases the older worker's position deteriorates while remaining formally employed or formally protected. The lesson is that neither imposing an age rule nor declining to regulate one produces protection; what produces protection is attaching entitlements to the person rather than to the employment arrangement.

7.5 The limits of a training-led strategy

Section 6.5 established two findings that together undercut the dominant policy instrument. The age cutoff excludes roughly half the target workforce, and training shows no measurable wage

return for eldercare workers even when they receive it.

The second finding deserves emphasis because it is counterintuitive and because it is the more fundamental. Training subsidies operate on the endowment side of the wage equation: they raise a worker's human capital in the expectation that pay follows. Yang's (2022) decomposition attributes approximately 76 per cent of the eldercare–childcare monthly wage gap to occupational discrimination rather than to endowment differences. If that estimate is even approximately right, then an instrument acting purely on endowments is addressing about a quarter of the problem, and the empirical finding of no significant wage return for eldercare workers is what one would expect.

This does not argue against training. It argues against treating training as the strategy. Raising the price of eldercare labour requires acting on the demand side and on the valuation of the occupation — through procurement standards in publicly funded eldercare, through wage floors attached to subsidised placements, through the professional recognition the study's own authors recommend. A training subsidy with the age ceiling removed would be better than the current arrangement. It would still not be sufficient.

8 Policy Recommendations

Each recommendation addresses a specific gap identified in Table 1, and each is calibrated to the competence of the authority named.

1. **Open an individual enrolment channel for single-item work-injury insurance.** *Addresses the coverage gap in Guangdong Reg.* 〔*2024*〕 *No. 6, Art. 5.* Amend Article 5 to permit enrolment by the individual worker, or in the alternative impose on intermediary agencies a duty to enrol the workers they place, with the premium recoverable from the placement fee. The contribution base already exists in the measure (60–300 per cent of the previous year's provincial average monthly wage), so the pricing question is settled; what is missing is a door. This is the single highest-value change available, because it converts a formally eligible population into an actually covered one by editing one clause. *Authority: Guangdong Department of Human Resources and Social Security.*

2. **Remove or carve out the age ceiling in the training subsidy regime.** *Addresses the coverage gap in Guangdong Reg.* 〔*2023*〕 *No. 13.* Either remove the 55/60 ceiling generally, or create an exception for domestic service and eldercare occupations, in which the workforce's median age already exceeds the ceiling. Pair this with the demand-side measures in recommendation 5, given the evidence that training alone yields no wage return in eldercare. *Authority: Guangdong DHRSS and Department of Finance.*

3. **Regulate age thresholds in domestic service recruitment advertising.** *Addresses the absence gap in the Guangdong Domestic Service Regulations.* On the next revision, insert a provision requiring that any age condition in a recruitment listing be justified by a genuine occupational requirement, with enforcement through the complaint mechanism already established in Article 21. A registration-based sector with a licensing regime is unusually well placed to enforce this, since the platforms and agencies that publish listings are identifiable and regulated. *Authority: Guangdong Provincial People's Congress; Shenzhen may act within its special economic zone legislative competence.*

4. **Establish domestic-worker service points at sub-district level, with a notification mandate.** *Addresses the awareness gap.* Locate them in the districts where domestic workers actually live, and give them a defined function: informing workers of their eligibility for work-injury enrolment and training subsidies, assisting with applications, and recording refusals. The awareness gap was not assessed in this study, and a service network of this kind would generate the data needed to assess it. *Authority: Shenzhen municipal government, through sub-district offices.*

5. **Create a Shenzhen "silver domestic service" programme addressing the demand side.** *Addresses the residual discrimination component.* Attach wage floors and insurance requirements to publicly funded or publicly subsidised eldercare placements, and make workers over 55 an explicitly named target group rather than a category that falls out of eligibility rules by default. Given the evidence that roughly three-quarters of the eldercare wage gap is not explained by endowments, an instrument acting on what purchasers pay is likely to outperform one acting on what workers know. *Authority: Shenzhen Civil Affairs Bureau*

and DHRSS.

9 Limitations

No original fieldwork. This paper analyses testimony collected by others. The workers quoted were answering questions posed for other purposes — Zhang (2023) was writing about her mother and their relationship, not about work-injury enrolment. Several claims made here, particularly regarding the awareness gap, could only be tested by asking domestic workers directly what they know about the entitlements analysed in Section 6. That study has not been done here, and the awareness row in Table 1 is left unassessed rather than filled with inference.

Geographic mismatch in the survey evidence. The strongest quantitative source (Yang 2022) surveyed Nanjing, Wuxi, Guangzhou and Foshan — not Shenzhen. Guangzhou and Foshan are within the same province and the same regulatory regime, which supports extension to Shenzhen, but the mean age of 54.44 years is not a Shenzhen figure and is not treated as one.

Dating of the industry evidence. The Shenzhen industry association's age-distribution figures date from 2017. The cohort-ageing argument in Section 6.1 depends on the assumption that the sector has continued to draw on the same generation rather than recruiting a younger one. That assumption is consistent with the later survey evidence but has not been directly verified for Shenzhen.

Recruitment listings not systematically sampled. The age ceilings reported in Section 6.1 are drawn from published commentary and illustrative listings rather than from a systematic content analysis. A coded sample of several hundred Shenzhen listings — recording stated ceilings by occupation, wage and employment model — would convert the paper's most rhetorically prominent claim into a measured one. This is the most valuable single extension available and is recommended as the next step.

Court decisions as illustration, not sample. The cases in Section 6.4 demonstrate that Article 1192 is applied as written. They do not establish how frequently injured domestic workers litigate, settle, or absorb the loss without a claim — which is the more policy-relevant quantity and is not available from published sources.

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